

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ELLA SHILLINGFORD,

SUMMONS

Plaintiffs

INDEX NO.

-against-

CITY OF NEW YORK; Police Officer ALBERT WONG,
Shield No. 305 and JOHN and JANE DOE 1 through 10,
individually and in their official capacities
the names John and Jane Doe being fictitious,
as the true names are Presently unknown),

Defendants

-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer, or, if the complaint is
not served with this summons, to serve a notice of appearance on
the Plaintiff's Attorney within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered
to you within the State of New York); and in case of your failure
to appear or answer, judgment will be taken against you by default
for the relief demanded herein.

Plaintiff designates KINGS County as the place of trial. The basis
of venue is residence of Plaintiff.

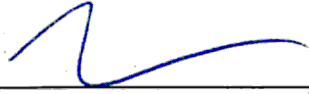
Plaintiff resides at: 401 76th Street, Apt. 3D, Brooklyn, N.Y.

Defendants' address is: One Police Plaza, New York, N.Y. 10007

NOTICE: This action is to recover damages for injuries to
plaintiff caused by the defendant's negligence. The relief
sought is monetary damages.

Upon your failure to appear, judgment will be taken against
you by default for an amount to be determined, with interest and
the costs of this action.

Dated: February 11, 2019



ROBERT MARINELLI, ESQ
305 Broadway-Suite 1001
New York, N.Y. 10007
212-822-1247

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SUPREME COURT OF THE STATE OF NEW YORK
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ELLA SHILLINGFORD,

Plaintiffs

COMPLAINT

INDEX NO.

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PLEASE TAKE NOTICE that plaintiff, by his attorney, ROBERT J.
MARINELLI, alleges the following, upon information and belief:

Preliminary statement

1. This is an action for damages arising from the imprisonment and prosecution of Ella Shillingford ("plaintiff"). Plaintiff was arrested on April 25, 2014, without probable cause and in violation of her rights under federal law and on February 18, 2015 plaintiff was convicted, after a bench trial, of one count each of vending without conspicuously displaying a license [A.C. Section 20-461(b)] and unlicensed general vending [A.C. Section 20-453). Plaintiff was sentenced to time served on each count.
2. Plaintiff appealed this Decision to the Appellate Division First Department and on February 18, 2015 each of plaintiff's

convictions was vacated.

3. On April 25, 2014, POLICE OFFICER ALBERT WONG ("Wong"), Shield No. 305; and POLICE OFFICERS JOHN DOE 1 - 10 ("Does"), acting within the scope of their employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") falsely arrested, assaulted, battered plaintiff, used excessive force and made false allegations to the New York County District Attorney's Office with respect to plaintiff.
4. Plaintiff seeks compensatory and punitive damages, attorneys' fees and costs with respect to the claims arising under federal law, and such other and further relief as the court deems just and proper.

JURISDICTION AND VENUE

5. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.
6. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).
7. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).
8. The cause of action arose within New York County, within the State of New York.

PARTIES

9. Plaintiff is a resident of New York County
10. At all times hereinafter mentioned, Plaintiff is a natural

person residing in Brooklyn, N.Y.

11. At all times hereinafter mentioned, defendant WONG was a police officer, employee and agent of the CITY, acting within the scope of his employment and under color of state law. Defendant WONG is sued in his official and individual capacity.
12. At all times hereinafter mentioned, defendants DOES were police officers, employees and agents of the CITY, acting within the scope of their employment and under color of state law, whose names and identities are not currently known to plaintiffs. Defendants DOES are sued in their official and individual capacities.
13. At all times hereinafter mentioned, defendant NYPD was an agency of the CITY.
1. At all times hereinafter mentioned, defendant CITY was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

Statement of Facts

2. In a sworn complaint Wong alleged that on March 17, 2014 that on March 17, 2014 at approximately 11:06 a.m. he "observed [plaintiff] display and offer for sale more than twenty buttons." Continuing, Wong stated, "At the time of [his] observations, [plaintiff] was not displaying a license issued by the Department of Consumer Affairs and could not produce one when asked."

3. At a suppression hearing Wong testified that he approached plaintiff and asked whether a near by table containing certain goods for sale was hers.
4. Appellant responded no, and explained that a nearby gentleman, Denver Bannister was the seller.
5. Bannister, upon Wong's request, produced a vendor's license. Wong rejected this license claiming that it was the "wrong color."
6. Wong observed no interactions between bannister and plaintiff.
7. Wong placed Bannister and plaintiff under arrest.
8. Plaintiff was taken to the precinct where she was held for approximately six hours, at which point she was released with a desk appearance ticket.
9. Plaintiff made eleven court appearances and was ultimately convicted of two vendor-related violations, and sentenced to time served and two hundred dollars in court costs.
10. The defendants, including defendant Wong, stopped plaintiff without probable cause or reasonable suspicion to believe that she had committed any crimes or offenses.
11. Defendants unlawfully seized plaintiff, without justification.
12. Despite the fact that they had no probable cause to believe that she had committed any crimes or offenses, the officers, including defendant Wong, placed plaintiff under arrest.
13. At the precinct, defendants, including defendant Wong, falsely

informed employees of the New York County District Attorney's Office that they had observed plaintiff commit crimes and/or offenses.

14. At no point did the officers observe plaintiff commit any crimes or offenses.
15. Plaintiff was subsequently arraigned in New York County Criminal Court.
16. Plaintiff's conviction was ultimately vacated by an appellate court for failure to state a valid cause of action in the criminal complaint.
17. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM
42 U.S.C. SECTION 1983

18. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
19. Defendants, by their conduct toward plaintiff alleged herein, violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.
20. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM
MALICIOUS PROSECUTION

21. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
22. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
23. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.
24. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

THIRD CLAIM
DENIAL OF THE RIGHT TO A FAIR TRIAL

25. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

26. The individual defendants created false evidence against Plaintiff.
27. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.
28. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
29. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM
FAILURE TO INTERVANE

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
31. Those defendants who were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
32. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth and Fourteenth Amendments.
33. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM

Negligent hiring, training, promotion and retention
("Monell" claim)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
35. The actions of defendants WONG and DOES were the result of a policy and custom of defendants CITY and NYPD of failing to hire, train, promote and retrain police officers properly.
36. Defendants CITY and NYPD, as a matter of policy and practice, has with deliberate indifference, failed to sanction or discipline police officers who use conduct illegal searches, execute arrests without probable cause, or misrepresent facts to the District Attorney.
37. Defendants CITY and NYPD were negligent in the hiring, training, supervision, discipline and control of defendants WONG and DOES, whose conduct is complained of herein.
38. Defendants CITY and NYPD were careless in failing to have in place, policies, procedures, rules and regulations to prevent the type of inappropriate conduct complained of herein and in failing to terminate it swiftly, and in having policies which encouraged said conduct, and/or in failing to adhere to existing policies, procedures, rules and regulations.
39. Defendants CITY and NYPD were negligent in employing and retaining dangerous, incompetent and dishonest police officers, whom they knew or should have known were dangerous and a menace

to the community, residents and in particular the plaintiff.

40. Said policies, practices and customs of City, complained of, as well as the omissions aforesaid, deprived the plaintiff of his rights and immunities secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. §1983.

Prayer for Relief

Wherefore, plaintiff demands judgment against defendants as follows:

- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
- d) Interest, costs and disbursements;
- e) Other and further relief as the court deems proper/

A jury trial is hereby demanded.



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